

The Information Technology (Other Powers Of Civil Court Vested In Cyber Appellate Tribunal) Rules, 2003

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The Information Technology (Other Powers Of Civil Court Vested In Cyber Appellate Tribunal) Rules, 2003

UNION OF INDIA

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The Information Technology (Other Powers Of Civil Court Vested In Cyber Appellate Tribunal) Rules, 2003

Rule

THE-INFORMATION-TECHNOLOGY-OTHER-POWERS-OF-CIVIL-COURT-VESTED-IN-CYBER-APPELLATE-TRIBUNAL-RULES-2003 of 2003

Published on 21 November 2003

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Published Vide G.S.R. 903(E), dated 21-11-2003, published vide Notification Gazette of India, Extra, Part, 2, Section 3(i), Sl.No. 571, dated 27-11-2003

13.

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In exercise of the powers conferred by clause (v) of sub-section (2) of section 87, read with clause (g) of sub-section (2) of section 58 of the Information Technology Act, 2000 (

21 of 2000

), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement

.- (1) These rules may be called The Information Technology (Other Powers of Civil Court Vested in Cyber Appellate Tribunal) Rules, 2003.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

.- In these rules, unless the context otherwise requires,-

(a)

"Act "means the Information Technology Act, 2000 (

21 of 2000

);

(b)

"Cyber Appellate Tribunal "means the Cyber Regulations Appellate Tribunal established under sub-section (1) of section 48 of the Act;

(c)

words and expressions used herein and not defined but defined in the Act shall have the meaning respectively assigned to them in the Act.

3.

Powers of Cyber Appellate Tribunal

.- The Cyber Appellate Tribunal shall have, for the purposes of discharging its functions under the Act, the same powers are as vested in a Civil Court under the Code of Civil Procedure, 1908 (5 of 1908), while trying a suit, in respect of the following matters, namely:-

(a)

setting aside any order of dismissal of any application for default or any order passed by it, ex parte ;

(b)

requisitioning of any public record, document or electronic record from any Court or office.

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